



Commission decides to refer Greece and Cyprus to the Court of Justice of the European Union for failing to ensure adequate treatment of waste

Brussels, 1 October 2026

Today, the European Commission decided to refer **Greece** ([INFR\(2021\)2166](#)) and **Cyprus** ([INFR\(2021\)2217](#)) to the Court of Justice of the European Union for failing to correctly apply the Landfill Directive ([Directive 1999/31/EC](#)) and the Waste Framework Directive ([Directive 2008/98/EC](#)).

The Landfill Directive sets standards for landfills to prevent adverse effects on human health, water, soil and air. Under this Directive, Member States must take measures to ensure that only waste that has been subject to treatment is landfilled. The Waste Framework Directive aims to prevent or reduce the generation of waste. Under the Directive, Member States must recover and dispose of waste in a manner that does not endanger human health and the environment, prohibiting the abandonment, dumping or uncontrolled disposal of waste.

The Commission sent a [letter of formal notice](#) in November 2021 and a [reasoned opinion](#) in December 2024 to Greece regarding shortcomings in 84 landfills, but also regarding Greece's failure to establish an integrated and adequate network of waste management installations, considering the best available techniques. Having assessed the reply submitted by the Greek authorities and the information available, it appears that three landfills were closed. Out of the remaining 81 landfills, the Commission has concluded that 66 landfills are non-compliant (81%).

The Commission sent a [letter of formal notice](#) in December 2021 and a [reasoned opinion](#) in December 2024 to Cyprus regarding the failure to ensure that waste is subject to an adequate treatment before being landfilled but also regarding Cyprus' failure to establish an integrated and adequate network of waste management installations, considering the best available techniques. Having assessed the reply submitted by the Cypriot authorities and the information available, the Commission has concluded that 21% of the waste produced in Cyprus is landfilled without prior treatment.

The Commission has also concluded that, in both countries, the capacity of installations for treatment of waste before landfilling is insufficient for treating mixed municipal waste.

The Commission considers that efforts by the Greek and Cypriot authorities to address the shortcomings have been insufficient and is therefore referring Greece and Cyprus to the Court of Justice of the European Union.

Background

The EU generates around 2.5 billion tonnes of waste per year, approximately 5 tonnes annually per person. This creates significant waste management challenges.

The [Waste Framework Directive](#) is designed to tackle these problems. It establishes the basic concepts related to waste management, including definitions of waste, recycling, and recovery, as well as the waste hierarchy and associated principles. Crucially, it aims to prevent the endangerment of human or animal health and harm to the environment.

The [Landfill Directive](#) sets out strict operational requirements for landfill sites and aims to protect both human health and the environment, and to prevent or reduce any negative impact from landfills on surface water, groundwater, soil, air and human health.

For more information

[EU infringement procedure](#)

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